

STATE OF NEW YORK

936--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. GONZALEZ, FAHY, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Internet and Technology -- recommitted to the Committee on Internet and Technology in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT directing a state agency telework report

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "state agency telework report act".

3 § 2. Legislative intent. The legislature takes notice of the growing
4 practice of the use of telework as a future form of work away from the
5 principal place of employment. Telecommuting is being used more and more
6 by businesses as a way to save money for employers by reducing contribu-
7 tions to workers' compensation premiums, allowing more freedom for a
8 balance between work and family life for employees, reducing air
9 pollution and traffic congestion, reducing absenteeism, and accommodat-
10 ing those who are disabled.

11 Teleworking warrants further research to enable the state to move a
12 step closer to using it as a way to save taxpayer's money, while also
13 benefiting the state and its employees.

14 § 3. Definitions. As used in this act, the following terms shall have
15 the following meanings:

16 (a) "State agency" means any state department, board, bureau, divi-
17 sion, commission, committee, public authority, public benefit corpo-
18 ration, council, office, or other governmental entity performing a
19 governmental or proprietary function for the state.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (b) "Telework" means to perform normal and regular work functions on a
2 workday that ordinarily would be performed at the state agency's offi-
3 cial principal location or locations, at a different location.

4 § 4. State agency telework report. (a) Each state agency shall submit
5 a report to the department of civil service by July 1, 2027 which shall
6 contain the following:

7 (i) Number of employees that teleworked in 2026;

8 (ii) Job titles that teleworked in 2026;

9 (iii) Number of days teleworked by anonymized employee in 2026;

10 (iv) Number of days teleworked by job title in 2026;

11 (v) Any benefits of telework remarked by the agency;

12 (vi) Any disadvantages of telework remarked by the agency; and

13 (vii) A copy of the agency's official telework policy, if any, includ-
14 ing how employees and job titles are chosen for telework.

15 In addition, each state agency shall allow employees to anonymously
16 submit their opinions of the agency's telecommuting policy, or lack
17 thereof, which the agencies shall include in the telework state agency
18 report due to the department of civil service and which shall be summa-
19 rized in the finalized report compiled by the department of civil
20 service pursuant to subdivision (b) of this section.

21 (b) On or before September 1, 2027 the department of civil service
22 shall provide a report compiling all the agency telework reports and
23 submit such compiled report to the speaker of the assembly and the
24 temporary president of the senate.

25 § 5. This act shall take effect immediately.